



DATE : May 09, 2026

TO : MV ZHE HAI 512

CC : Engr. **HELBERT ARCILLA**
FVC - PROJECT MANAGER

Engr. **IRAH EVE NICOLE D. BUHIAN**
FMDC – ENGINEERING & COST CONTROL HEAD

: **ALJIE BATATAS**
FMDC - PCCO

FROM : PORT & SHIPMENT OPERATION DEPARTMENT

SUBJECT : **FORMAL DENIAL OF LIABILITY – ALLEGED PORTSIDE DAMAGE INCIDENT.**

Good day, Sir

This is to formally address the damage report dated **May 7, 2026** at **1306H** alleging that **DUMSATO STEVEDORING** personnel/operators caused damage to the portside railing near Hatch No. 4, including the allegedly bent/disaligned pipe.

After thorough inspection and joint investigation conducted by **FMDC** and **FVC** representatives, it was established that the alleged damage was not caused by **DUMSATO STEVEDORING** operations. At the time of the reported incident, all cargo operations had already ceased and Crane No. 4 was properly secured.

Verification of the **Statement of Facts (SOF)** from **1125H** to **1530H** on **May 7, 2026** confirmed that no barge was berthed alongside the portside area and no operational activity involving Crane No. 4 was conducted within the reported period. Hence, there is no factual or operational basis to attribute the alleged damage to **DUMSATO STEVEDORING** or its operators.

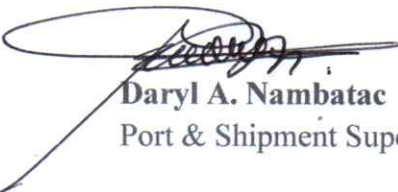
Findings further indicate that the probable cause of the damage was due to heavy swell and strong sea movement, which are considered external environmental factors beyond the control of **DUMSATO STEVEDORING** personnel. The damage was clearly accidental and unintentional in nature.

Moreover, with regard to the alleged pipe disalignment, the claim likewise lacks merit and cannot be substantiated. Upon arrival and inspection, the subject pipe was already covered, preventing immediate verification of its actual condition. **FMDC** representatives also requested inspection of the other covered pipes for comparative assessment and validation; however, such request was not permitted. Due to the absence of transparent inspection and verifiable supporting evidence, no conclusive determination can be made linking the alleged damage to **SDUMSATO STEVEDORING** operations.



In view of the foregoing findings, any attempt to hold **DUMSATO STEVEDORING** liable for the alleged damages is without sufficient factual, technical, and documentary basis. Therefore, the claim is respectfully denied pending presentation of clear, verifiable, and conclusive evidence directly establishing liability.

Respectfully submitted:



Daryl A. Nambatac
Port & Shipment Supervisor

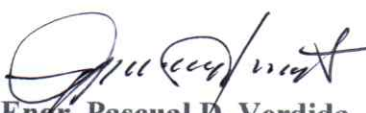
Noted by:



Francis Rayyan E. Ybañez
Port & Shipment Head



Florentino L Cañedo
Project Director



Engr. Pascual D. Verdida
Project Manager

FORMAL EXONERATION REPORT

To: Master / Owners of MV ZHEHAI 512
From: Dumsato Stevedoring Services
Date: May 9, 2026

Subject: Formal Rebuttal and Denial of Liability for Notice No. MSIF-21-01

1. Official Position

Following the "Notice of Damage" issued on May 7, 2026, Dumsato Stevedoring formally denies any liability for the damage to the ship's rails and conduits. We maintain that our personnel performed all duties with due diligence and that the damage resulted from external environmental forces beyond our control.

2. Statement of Facts

Operational Timeline: At the time the incident occurred (approx. 13:00H), the No. 4 crane was not being operated by our stevedores.

Completion of Securing: Our team had successfully finished using the crane and ensured it was placed in its designated rest position on the deck. This was completed and verified two (2) hours prior to the incident.

The Incident Cause: While the crane was at rest and the vessel was at anchorage, the vessel encountered a sudden and heavy swell. This unpredictable movement caused the crane grab to shift from its secured resting position.

3. Basis for Denial of Responsibility

We dispute Section 6a of the original notice based on the following:

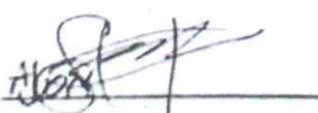
Proper Procedure: The equipment was "at rest" and had been stable for two hours, proving it was initially secured according to standard safety practices.

Environmental Force (Force Majeure): The movement was triggered solely by the sea state (the swell). As stevedores, we cannot be held responsible for the movement of heavy machinery caused by the natural rolling of the vessel in rough water.

Non-Negligence: Since our operator were not operating the machinery and had followed all "end-of-shift" securing protocols, there is no evidence of professional negligence.

4. Final Determination

As the damage was an unavoidable consequence of the vessel's reaction to heavy swells, Dumsato Stevedoring shall not be held financially or legally responsible for the costs of repair or replacement. We request that the vessel's records be updated to reflect that this was a weather-related incident.

Signed: 

Authorized Representative [Dumsato Stevedoring]

Received copy only as agent
JUDE / S ZANORIA



PHILHUA SHIPPING INC.

菲华海运

DAILY LOADING REPORT

1

VESSEL : MV " ZHE HAI 512 "

VOY : 2604

FROM : MAY 07, 2026 @ 0700 hrs

TO : MAY 08, 2026 @ 0700 hrs

ETC/D : MAY 14, 2026 WP IAGW

TOTAL LOAD TODAY:	5,784	MT	LCT IMC 25	1	Truck Load - 231
PREVIOUS LOAD :	16,214	MT	LCT Poseidon 11	1	Truck Factor - 25.04
TOTAL LOAD TODATE :	21,998	MT	LCT Full Speed 2012	1	Total Truck Load - 936
BALANCE TO LOAD :	26,368	MT			Total Barges Trip - 12
CARGO TO BE LOAD :	48,366	MT			Todate - 3

Total Barges Trip Today - 3

0700 hrs - 0855 hrs - RAIN, no loading operation, at 0735 hrs LCT IMC 25 cast off with stimated cargo remaining 10 truckload

0855 hrs - 1125 hrs - LCT Poseidon 11 (65 truckload) re-alongside at portside in H- 3&4, C- 3&4

1125 hrs - 1215 hrs - Resumed and continuous loading in H-3&4, C- 3&4

1125 hrs - 1215 hrs - Stopped loading in H- 3&4 due to LCT Poseidon 11 empty

1125 hrs - 1215 hrs - Waiting for barges, at 1130 hrs LCT Poseidon 11 cast off

1220 hrs - 1530 hrs - LCT Full Speed 2012 (60 truckload) alongside at starboardside in H- 1&2

1220 hrs - P&I Surveyor and ships Officer conducting cargo can test in LCT Full Speed 2012 cargo

1220 hrs - 1530 hrs - Resumed and continuous loading in H- 1&2, C- 1&2

1530 hrs - LCT IMC 25 (100 truckload) alongside at portside in H- 4&5

1535 hrs - P&I Surveyor and ships Officer conducting cargo can test in LCT IMC 25 cargo

1535 hrs - 1645 hrs - Resumed loading operation in H- 4&5, C- 3&4 Continuous loading operation in H-1&2, C- 1&2

1645 hrs - Stopped loading operation in H-1&2, C- 1&2 due to LCT Full Speed 2012 empty

1645 hrs - 2015 hrs - Continuous loading operation in H- 4&5, C- 3&4

2015 hrs - LCT Sydney Allysa II (64 truckload) alongside at starboardside in H- 1&2 and stopped loading in H- 4&5 due to LCT IMC 25 empty cargo

2020 hrs - P&I Surveyor and ships Officer conducting cargo can test in LCT Sydney Allysa II cargo and unable to resumed loading due to RAIN LCT IMC 25 cast off

2020 hrs - 2400 hrs - RAIN no loading operation At 2330 hrs LCT Sydney Allysa II force to cast off due to Heavy SWELL

May 8, 2026 (Thursday) Weather - Cloudy

0000 hrs - 0700 hrs - RAIN and Heavy SWELL. (Barges unable to alongside)

Prepare by:

Agent onboard
Philhua shipping Inc.

No delays on Ship's Account

HMC Representative onboard

Noted by:

CAPT / C.O

MV " ZHE HAI 512 "



NOTICE OF DAMAGE BY STEVEDORE
TO SHIP and/or SHIP'S EQUIPMENT and/or SHIP'S MACHINERY
装卸工人损坏通知书

This is to notify you that, on the date as below you damaged to my ship and/or equipment and/or machinery as specified below and I hereby on behalf of my vessel's owner and/or charterers hold you responsible for any damage / loss sustained therefore and the costs of repair and/or replacement will be billed against you. I reserve the right to submit further damage claim in respect of any damage discovered after completion of loading/discharging which are not yet apparent at the present moment.

兹通知, 在下述时间, 你方在卸货过程中造成我轮船体和/或设备和/或机械装置如下所列明的损坏, 我在此代表船东和/或承租人认为你方应对任何损坏/损失负责, 并承担支付相关修理和/或更换费用。同时, 我将保留在装/卸货后发现由此造成的任何损坏/损失进一步追偿的权利, 尽管目前尚未发现。

船长 大副 Chief officer/Master of

1 Vessel Name / Voyage Number
船名/航次号:

浙海 512/ZHEHAI512

V2604

2 Time and Date of Damage Occurred
造成损坏的时间日期:

2026.05.07/1306LT(+8)

3 Name of Port & Berth
港口及泊位:

达沃端地律宾/DAVAO ANCHORAGE PHILIPPINES

GPS 06 43 2N12615 5E

4 Damage was surveyed by
损坏检查人员:

同赵权/大副/小成

Z/O ZHAO QUAN

C/OLYU XIAO WEI

(Name & rank of ship's officer)

5 Witnessed by
见证人:

值班水手刘华/甲板实习生邵成俊

AB/LIU HUA

DECK CADET/GAO CHENG JUN

(Name of Stevedore representative)

6 Details of the damage
损坏的详细情况

Rail 6 m² were broken on portside

Main Deck Cable Conduit

3 pce angle iron brackets for cable conduit

5M were bend on portside

6 pce bracket soleplate for cable conduit

2 cable conduit expansion joints broken by forced extrusion

a) Cause of Damage (造成损坏的原因)

No.4 crane grab on main deck out of position and unsecured effectively

b) Extent of Damage and/or loss (造成损坏/损失的程度)

1. No.4 Hold Rail 6 m² totally damaged on portside 2. No. 4 Hold Main Deck Cable Conduit 5M were bend on portside 3. angle iron brackets for cable conduit 3pcs damaged 4. bracket soleplate for cable conduit 6 pce damaged 5. conduit expansion joints broken by forced extrusion 2cable

7 Disposition of Damage (Put mark in applicable box)
损坏的处理方式 (在方框中勾选)

☒ Damage will be repaired at this port by Stevedore
开航前由工人修复

☐ Damage will be repaired on the next call of this Terminal.
下一港修复

☐ Damage will be repaired by vessel crew
船员自行修复

☐ Damage will be repaired at other port by Vessel Owner
船东安排在其他港口修复

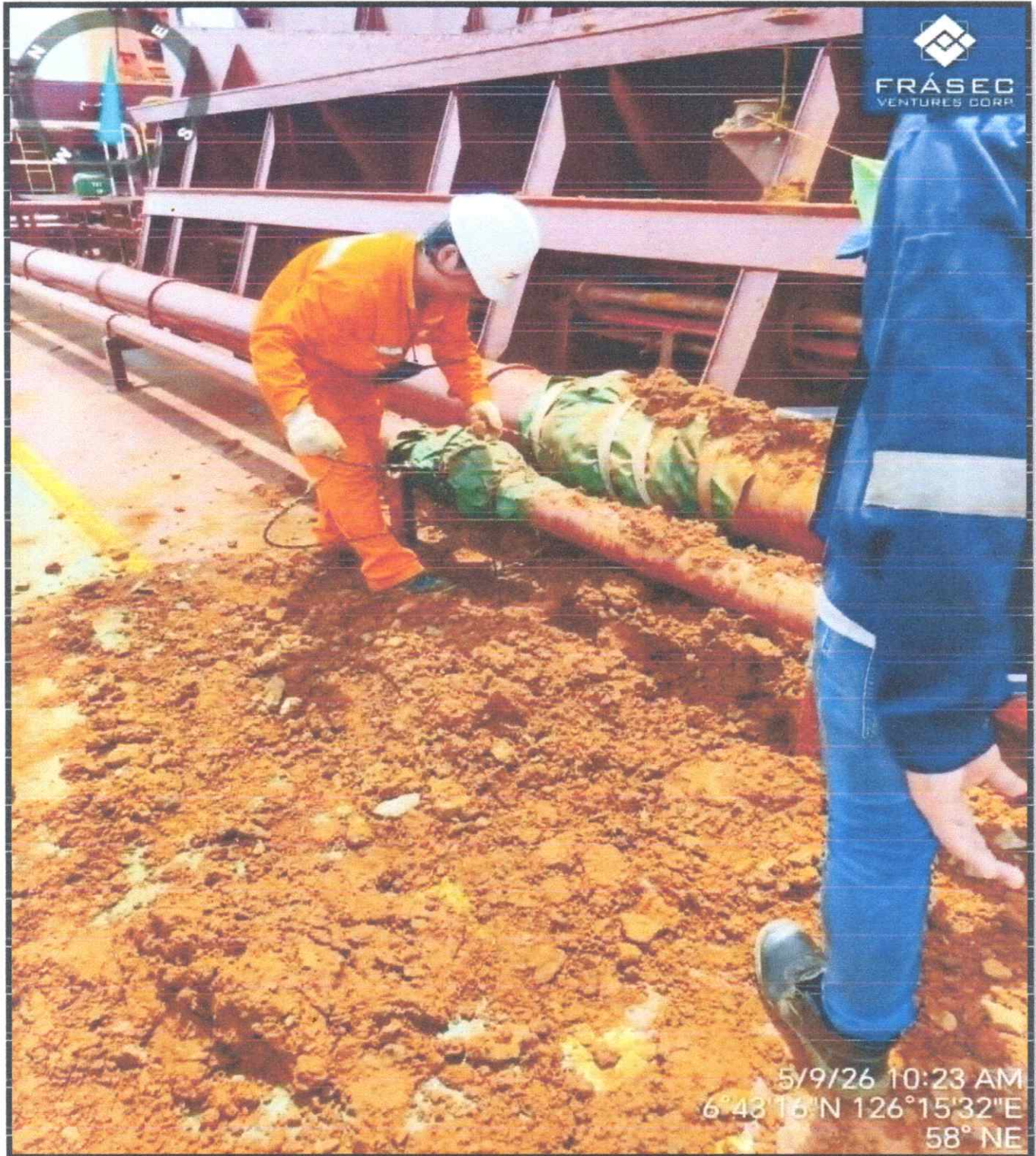
☐ Others(Please explain)
其他

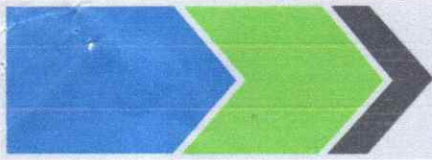
This notice received, read and checked against damage. The cause and extent of damage is correctly stated and above.
本人已收到上述通知书，并对上述设备损坏程度进行核对，上述内容属实及正确。

The Stevedore Representative 装卸代表

For the Stevedore Company 装卸公司

- As you can see, the pipe was already covered, and they are claiming damage that we did not even witness. Upon their arrival at the HMC Anchorage area, the pipe was already concealed/covered prior to our observation. Therefore, no direct evidence can establish that the alleged damage was caused by our operations.





- The Pipe allegedly claimed to have been damaged.

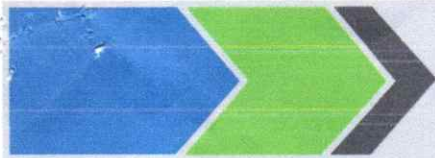


- This is the area being claimed by MVZHE HAI 512 as alleged damaged by DUMSATO STEVEDORING



- This area was acknowledged by the stevedore as the one they damaged, but the damage was unintentional.





- The other pipes that were covered, we requested to have them uncovered but they refuse.

